

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 28, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 14, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –EMERGENCY READING – Amending Section 10.80, Bicycles, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming (Sponsor – Mr. Segrave). Mayor Collins advised that the City Attorney reported a large vendor of electronic scooters (e-scooters) has plans to locate here beginning in July and has requested emergency approval of 3 ordinances in order to provide for appropriate licensing and enforcement regulations prior to their arrival. Michael O'Donnell, City Attorney, explained there are 3 proposed ordinances related to e-scooter and e-bicycle legislation. He noted there are currently e-scooters operating in the city and it is anticipated there will be more companies coming to Cheyenne. Mr. O'Donnell advised the ordinances focus on public safety particularly noting the upcoming Cheyenne Frontier Days (CFD) event. Upon request, Mr. O'Donnell reported on this agenda item and the 2 affiliated ordinances and advised this ordinance amends City Code Section 10.80 and is a modification of the existing bicycle ordinance and includes definitions for e-scooters and related devices. He advised Chapter 10.82 creates a regulatory structure for the devices that are for hire only, noting it specifically excludes the DDA Re-Ride Program. He further reported it sets up the structure for a business license and fees, a series of requirements for how the business shall be run, insurance and indemnification requirements, suspension and revocation provisions that are established within the City Code administrative hearing process and public education required. He noted enforcement occurs through the Police Department, City Clerk, Compliance Division and occasionally through the Planning & Development Department. It was further advised there are anticipated amendments to Chapter 10.82. Mr. O'Donnell provided highlights of the proposed Indemnification Agreement which was reviewed by Bird Rides, Inc., a large operator planning to operate in Cheyenne, noting there are significant insurance and indemnification requirements. Mr. O'Donnell explained amendments to Chapter 5.04 include adding the license in the business license section of the City

Code. Mayor Collins provided information relating to approval on Emergency Reading and explained a motion to suspend the rules is required, noting a three-quarters affirmative vote (8 out of 10 members of the Governing Body) is required to proceed for emergency approval. Mayor Collins advised if the motion to suspend the rules fails, the item would be referred to the Finance Committee for a recommendation. Mr. White moved to suspend the rules and hear this ordinance as an emergency ordinance pursuant to Wyoming State Statute 15-1-115(c), seconded by Mr. Roybal. During public comment, Jeremiah Mahoney spoke in support of approving regulations prior to an influx of scooters being utilized by citizens. Michael Covato, Bird Rides, Inc., Territory Manager, expressed enthusiasm for the opportunity to locate in Cheyenne. Upon inquiry, Mr. Covato advised the company has been internally assessing operations in Cheyenne over the last year and did outreach earlier this year, however formal conversations began several weeks ago. It was noted from members of the Governing Body that although there is excitement for the operation, the emergency ordinance regulatory process seems rushed and additional time to research and make appropriate decisions is preferred. Upon inquiry, Mr. Covato provided operations expectations and information relating to CFD events, seasonal operations, and local management. Mr. Covato expressed the desire to partner with local members of the community to hire a local Fleet Manager. Comments were made related to time frame for scooters to arrive and time necessary to prepare required licensing and insurance provisions. Upon further inquiry, Mr. Covato provided information on the number of e-scooters the company plans to start with locally which will be monitored for potential increases. It was advised that geofencing regulations and limitations would be enforced, noting changing the area of the geofence is a simple process. Mr. O'Donnell noted the anticipated amendment defines geofencing that allows for flexibility at the discretion of the director, noting the director will work with companies to determine what those requirements should be. Hamilton Byrd, local concert promoter, reported he and his partner have recently launched Bandwagon e-scooters in the community and they have been working with the Downtown Development Authority (DDA) and the Metropolitan Planning Organization (MPO) for several months. Mr. Byrd reported the top speed of a scooter is limited to 20 kilometers per hour, helmets are suggested and currently they have 32 e-scooters in operation. He advised the MPO provided them with suggested geofencing requirements and noted the age minimum is 16 for operation. He further advised upon inquiry, that he supports regulations and will work with the city to become compliant and confirmed alteration of geofencing is easily obtained. Jenny Clough expressed safety concerns for riders and pedestrians related to street and sidewalk conditions. Ms. Clough voiced support of e-scooters but cautioned operations during CFD. Motion (to suspend the rules) carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". City Clerk Kris Jones read the ordinance entitlement into record upon request of Mayor Collins. Upon inquiry, City Clerk Kris Jones explained that under the emergency ordinance procedure, a three-quarters affirmative vote (8 out of 10 members of the Governing Body) in order for the ordinance to pass. Mr. Segrave moved to approve, seconded by Mr. White. It was noted by members of the governing body that the issues brought up by Ms. Clough demonstrates the need for requirements to be addressed immediately and that other cities have had to ban scooters as businesses came in without regulations in place. Additional comments were made in support of efforts by the attorney's office and support was voiced for the e-scooters but concern was expressed related to the fast paced approval of the ordinances. Mayor Collins noted occasionally the need arises for approval of emergency procedures. Upon inquiry, Mr. O'Donnell reported an ordinance exists that addresses skateboards in the Central Business District

(CBD). It was noted that in the future electric unicycles will be considered for inclusion of regulations set forth within the affiliated ordinances. Mayor Collins and Mr. O'Donnell confirmed that these vehicles would be allowed to operate on the greenway as they are categorized by state statute as non-motorized due to engine size. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#4378)

ORDINANCE –EMERGENCY READING – Creating a new Chapter 10.82, Motor-Assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming (Sponsor – Mr. Segrave). Mr. White moved to suspend the rules and hear this ordinance as an emergency ordinance pursuant to Wyoming State Statute 15-1-115(c), seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. O'Donnell read into record the following proposed amendments: Section 10.82.020-Definitions and Exclusions-addition of "Geofencing" means the use of a virtual perimeter in which the use of a dockless vehicle is either restricted or the speed of the dockless vehicle is reduced when in use; 10.82.050-Dockless Vehicle Operations-F-Notices of violations or broken or inoperable dockless vehicles: 1. License holders shall have two hours after receiving notice of a violation, and 10.85.050(I): License holders shall adhere to geofencing requirements, as determined and at the discretion of the director. Mr. Segrave moved to amend by referenced language changes provided by Mr. O'Donnell, seconded by Dr. Aldrich. Upon inquiry, Mr. O'Donnell provided enforcement processes and confirmed the city would work within the spirit of the law for enforcement efforts. Motion to amend carried. Voting "yes" - all members of the governing body. Dr. Rinne moved to postpone to July 12, 2021, seconded by Mr. Cook. Support and opposition was expressed for the proposed postponement. Jillian Harris, Transportation Planner for MPO, provided details on the history of efforts to implement legislation for regulations which began in February 2021. Ms. Harris advised that introduction of e-scooters was inevitable and that the MPO has taken necessary steps to work with city staff and e-scooter operators to protect the citizens. Ms. Harris explained the MPO had been working with the Bandwagon providers and Bird Rides, Inc. contacted the MPO in March and presented a memorandum of understanding (MOU) which was catalyst to move the legislation as quickly as possible in the best interest of the community from a public safety standpoint. Michael Covato, Bird Rides, Inc., advised there are planning logistics that can't be done until an ordinance outlining regulations is in effect, voicing opposition to the postponement. Kris Jones, City Clerk, upon inquiry, advised staff has been working on ordinance details including the business license component, noting final document details will require additional adjustments pushing implementation further out if postponed. Mr. O'Donnell shared that coordination with insurance companies requires time to assure all requirements are in place, noting that a delay would most likely result in missing the timeline of being ready prior to CFD. Mr. Johnson noted for the record he opposes rushed approval which denies the public opportunity to participate. Mr. O'Donnell reported future ordinance amendments can take place after approval through the regular council approval process, noting the importance of having regulations in place prior to implementation of e-scooters in the community. Motion to postpone failed. Voting "yes" - Mr. Cook, Mr. Johnson and Dr. Rinne. Voting "no" - Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Laybourn, Mr. Roybal, Mr. Segrave and Mr. White. Mr. O'Donnell reported that the Indemnification and Insurance provisions will be finalized by staff, can be adjusted when necessary, and are not a part

of the ordinance but are referenced in the ordinance. Dr. Rinne moved to amend by capping the number of e-scooters to a total of 80, seconded by seconded by Mr. Cook. It was noted that Bandwagon already has 32 e-scooters active and that limiting the amount could raise legal concern with regard to restraint of trade. Comments were made in support and in opposition of the proposed amendment, and support was voiced for a free market approach. Mr. O'Donnell voiced concern with a first come first serve environment limiting those who can apply for a license to operate. Tom Mason, MPO Director, advised that without rules and regulations in place, the program should be restricted to a pilot program and that he anticipates use of e-scooters as mode of transportation, noting 80 scooters isn't sufficient for that purpose. Additional comments were made in support of letting the marketplace and company expertise determine the number of e-scooters the community needs. Boyd Wiggam voiced opposition to capping the e-scooter amount and cautioned against restraint of trade noting he believes a cap would be detrimental in allowing this as a transportation type in the community. He further voiced support of e-scooters in the community. Additional detailed comments were made in support and in opposition of capping fleet numbers, free trade/market concept, restraint of trade, public safety concerns and uncharted territory relating to e-scooters. Motion to amend failed. Voting "no" – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting "yes". Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#4379)

ORDINANCE –EMERGENCY READING – Amending Section 5.04.030, Types of Businesses, Activities and Events, of Chapter 5.04, Business Licenses Generally, and creating a new Section 5.08.155, Motor-Assisted Scooters, Electric Bicycles and Bicycles Equipped with GPS, of Chapter 5.08, Business License Fees, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne (Sponsor – Mr. Segrave). Mr. White moved to suspend the rules and hear this ordinance as an emergency ordinance pursuant to Wyoming State Statute 15-1-115(c), seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting "no". Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#4380)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from June 14, 2021). Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to July 12, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting "yes" – all members of the governing body.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from June 14, 2021). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to July 12, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting "yes" – all members of the governing body.

ORDINANCE –3rd READING – Creating a new Chapter 2.80, Urban Renewal Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on third and final reading, seconded by Mr. White. Supportive comments were made by members of the Governing Body to Mayor Collins and city staff for their efforts on the ordinance. Motion carried. Voting “yes” – all members of the governing body. (#4381)

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to create the Urban Use Overlay District. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Appreciation was expressed to the Planning & Development Department on their efforts and it was noted this ordinance would ease requirements for development in the west edge area. Motion carried. Voting “yes” – all members of the governing body. (#4382)

ORDINANCE –3rd READING – Creating Section 13.04.141, Fee Assessment on Gross Revenues, of Chapter 13.04, Board of Public Utilities, of Title 13, Public Utilities Generally, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Laybourn voting “no”. (#4383)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use and County LR Low Density Residential to CB Community Business, LR Low-Density Residential, and MR Medium-Density Residential for land located northeast of and adjacent to the intersection of Dell Range Boulevard, west of Whitney Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated June 16, 2021, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Creating a new Section 8.60.210, Liens, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Upon inquiry, Mr. O'Donnell provided clarification that the city would take priority of all liens except prior tax or assessment liens, noting the purpose is intended to place city liens on high priority. Mr. Roybal moved to approve on second reading, seconded by Mr. Laybourn. Supportive comments were voiced, and it was noted this action is necessary to act responsibly in certain situations the city faces regarding public health and safety issues. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Creating a new Section 12.04.240, Liens, of Chapter 12.04, Streets, Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Laybourn. Comments were voiced regarding widespread damage and issues with streets, sidewalks and driveways that need addressed. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Creating a new Section 15.24.030, Liens, of Chapter 15.24, Dangerous Building Code, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Upon inquiry, Mr. O’Donnell provided information on removal of a dangerous building near the municipal building and the city is currently in litigation to recoup the expense of removal. He further explained the intent of the proposed lien ordinances are to allow the city to be first in line to recoup expenses. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending various sections of Chapter 5.04, Business Licenses Generally, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending various sections of Chapter 5.52, Massage Establishments, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending various sections of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County X (Exempt) to SS (Support Services) for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located northwest of the intersection of

Country Club Avenue and Snyder Avenue – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to create a Public Safety Fee requirement for residential, commercial, service, industrial, civic, public service, employment, agriculture, and other development in the city – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending Section 2.76.020, Members-Term-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Amending Resolution Nos. 5934 and 5998 pertaining to adoption of a revised Cheyenne-Laramie County Board of Health Fee Schedule for inspection services, permit fees, and other various services. Motion (per Consent Agenda carried). (#6153)

[CA] RESOLUTION – Authorizing the filing of an application with the Federal Transit Administration for federal transportation assistance authorized by Title 49, United States Code, Section 5339. Motion (per Consent Agenda carried). (#6154)

[CA] RESOLUTION – Accepting a grant in the amount of \$318,375.00 from the Corporation for National and Community Service for the City of Cheyenne, Office of Youth Alternatives, Foster Grandparent Program. Motion (per Consent Agenda) carried. (RES #6155/CONT #7364)

[CA] RESOLUTION – Pursuant to Wyoming Statute §15-9-106 Finding and Declaring Parts of the City of Cheyenne as Blight and authorizing the redevelopment thereof. Motion (per Consent Agenda) carried. (#6156)

[CA] RESOLUTION – Approving propositions to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at a special election to be held November 2, 2021 – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Expressing the interest and support of the Governing Body in moving forward with the ‘Hyatt Place Hotel and Cheyenne Center’ Project – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Authorizing the City of Cheyenne to accept a grant award from the U.S. Department of Treasury for the American Rescue Plan Coronavirus State and Local Fiscal Recovery Funds in the amount of \$12,191,813 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Small Business Administration Shuttered Venue Operators Grant to

recoup a portion of revenue losses incurred as a result of mandatory coronavirus induced Civic Center closures – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Cheyenne Community Recreation District Recreation Mill Grant to purchase scoreboards and sound systems for the Cheyenne Junior League Athletic Complex – referred to Finance Committee. (Sponsor – Mr. Roybal)

Preliminary Plat for Meadowlark Estates, 2nd Filing, a replat of Tract 1 and a portion of Tracts 2-9 of Meadowlark Estates, Laramie County, Wyoming (located northeast of the intersection of Dell Range Boulevard and Whitney Road. Bruce Perryman, AVI, agent for the applicant, noted the area to be developed has been anticipated to be developed as urban residential. Dr. Rinne moved to acknowledge the Planning Commission’s recommendation to approve the preliminary plat subject to City staff’s recommended conditions 1-3, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Preliminary Plat for The View, a replat of Tract 1, Park Estates, 4th Filing and Lot 20, Block 4, Park Estates, Laramie County, Wyoming (located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive. Bruce Perryman, AVI, agent for applicant, advised that annexation and a zoning change are currently being sought for this development. Mr. Perryman reported that the development plans include 4 townhome units for a total of 8 executive residential units. Dr. Rinne moved to acknowledge the Planning Commission’s recommendation to approve the preliminary plat subject to City staff’s recommended conditions 1-2, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development. Motion (per Consent Agenda) carried (in an amount not to exceed \$50,000.00). (#7354)

[CA] Agreement between the City of Cheyenne, Community Recreation and Events Department, and Brian Chalstrom D/B/A Putt Hutt, for premises used as a miniature golf course in Lions Park. (Revenue to the City). Motion (per Consent Agenda) carried. (#7355)

Memorandum of Understanding between the City of Casper, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Mr. Roybal moved to approve, seconded by Mr. White. It was noted that there were questions relating to reimbursement at the Finance Committee and that due to a “no” vote, this item was not placed on the consent agenda. Clarification was provided following vote of this item and the remaining extraterritorial law enforcement assistance memorandums of understanding were approved unanimously. Motion carried. Voting “yes” – all members of the governing body. (#7356)

[CA] Memorandum of Understanding between the City of Laramie, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Motion (per Consent Agenda) carried. (#7357)

[CA] Memorandum of Understanding between the City of Douglas, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Motion (per Consent Agenda) carried. (#7358)

[CA] Memorandum of Understanding between the City of Torrington, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Motion (per Consent Agenda) carried. (#7359)

[CA] Memorandum of Understanding between the Town of Hulett, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Motion (per Consent Agenda) carried. (#7360)

[CA] Memorandum of Understanding between Johnson County, Wyoming, and the City of Cheyenne, Wyoming, for extraterritorial law enforcement assistance. Motion (per Consent Agenda) carried. (#7361)

[CA] Lease agreement between XESI and the City of Cheyenne, Information Technology Department, to lease 1 copier for duplication services (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between Y2 Consultants, Jackson, WY, and the City of Cheyenne, Metropolitan Planning Organization (MPO), for the East Pershing Boulevard Design Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for law enforcement services at various schools and school-related events (Revenue to the City) – referred to Finance Committee.

[CA] Memorandum of Agreement between the 153D Airlift Wing, Wyoming Air National Guard, and the City of Cheyenne, Cheyenne Police Department for Law Enforcement Assistance – referred to Finance Committee.

[CA] Easement and Assignment of Lease Agreement between the City of Cheyenne and Eco-Site, LLC, Boca Raton, FL, for a tower, utility and access easement (Revenue to the City) – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and Wyoming Department of Environmental Quality (WDEQ) for the installation and use of ambient air quality and meteorological monitors (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services (General Fund) – referred to Finance Committee.

[CA] Contract modification #1 to Contract #7319 between the City of Cheyenne and KLJ Engineering for mapping and surveying services for the Landfill and Compost Facility (Solid

Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$20,000.00). (#7319)

[CA] Contract amendment #1 to Contract #7239 between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and Summit Engineering for the East Park Greenway Underpass and Drainage Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$20,040.00). (#7239)

[CA] Consideration of Bid #S-19-21 for a contract between the City of Cheyenne and Ameri-Tech HVAC Services, Inc., for the HVAC and Mechanical Systems Maintenance Project (Civic Center Fund, Fleet Maintenance Fund, General Fund, Solid Waste Fund, Ice & Events Center Fund, Special Purpose Option Tax and 1% Sales Tax 2019-2022). Motion (per Consent Agenda) carried (in an amount not to exceed \$365,799.00). (#7362)

[CA] Consideration of Bid #E-28-21 for furnishing three (3) new 2021-2022 cab and chassis (low cab forward/cabover) with 40-yard front loader refuse collection body installed, for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Peterbilt of Wyoming, Cheyenne, in an amount not to exceed \$689,094.00).

[CA] Consideration of Bid #E-29-21 for furnishing one (1) new 2021-2022 twin-screw diesel powered cab and chassis, for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Peterbilt of Wyoming, Cheyenne, in an amount not to exceed \$119,264.00).

[CA] Consideration of Bid #E-30-21 for furnishing three (3) new current in production 2021-2022 solid waste transfer trailers, for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Ameri-Tech Equipment Co., Evansville, WY, in an amount not to exceed \$311,700.00).

[CA] Consideration of Bid #E-31-21 for furnishing one (1) new 2021-2022 front end wheel loader with less than 10 hours (Transfer Station), for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Honnen Equipment, Cheyenne, in an amount not to exceed \$172,400.00).

[CA] Consideration of Bid #E-32-21 for furnishing one (1) new 2021-2022 front end wheel loader with less than 10 hours (Compost Facility), for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Honnen Equipment, Cheyenne, in an amount not to exceed \$206,000.00).

[CA] Consideration of Bid #E-33-21 for furnishing one (1) new 2021-2022 portable trommel compost, topsoil screen plant, for the City of Cheyenne, Sanitation/Compost Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Argus Industrial Co., Pontiac, MI, in an amount not to exceed \$131,971.67).

[CA] Consideration of Bid #E-34-21 for furnishing one (1) new 2021-2022 horizontal mobile wood waste grinder, for the City of Cheyenne, Sanitation/Compost Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Rotochopper, Albany, MN, in an amount not to exceed \$389,707.00).

[CA] Consideration of Bid #E-36-21 for furnishing one (1) new 2021-2022 1 ton, regular cab, full size pickup truck, with plow, for the City of Cheyenne, Community Recreation and Events Department (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Spradley Barr Motors, Cheyenne, in an amount not to exceed \$45,585.00).

[CA] Consideration of Bid #E-38-21 for furnishing one (1) new 2021-2022 15 passenger van, for the City of Cheyenne, Community Recreation and Events Department (2015-2018 1% Sales Tax and Insurance Claims). Motion (per Consent Agenda) carried (accepted bid from Greiner Ford, Casper, WY, in an amount not to exceed \$33,270.00).

[CA] Consideration to purchase between the City of Cheyenne, and CenturyLink, Littleton, CO, to relocate CenturyLink owned fiber optic utilities in preparation for an upcoming construction project (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$72,000.00).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Reappointments of Robert Korber to the Laramie County Community Juvenile Services Joint Powers Board and Patrick Brady to the Community Action of Laramie County Board of Directors. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Kim Skoutary-Johnson to the Laramie County Juvenile Services Board; Stephanie Reece and Wendy Volk to the Downtown Development Authority Board; Stephanie Reece to the Visit Cheyenne Board; Trey Rinne and Kevin Marquardt to the Cheyenne/Laramie County Economic Development Board; Curtis Clabaugh and Milo Vigil to the Board of Adjustment and Lauren Johnson, Carol Behrend, Samantha Cook, and Donald Potter to the Mayor’s Council for People with Disabilities. Dr. Rinne declared conflict of interest due to a proposed appointment of a family member and did not participate in discussion or vote. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins (mayoral appointments) and Dr. Rinne who did not vote.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the July 15, 2021 Wyoming Association of Municipalities Summer Convention Business Meeting to be held in Cheyenne, Wyoming. Motion (per Consent Agenda) carried (appointed Dr. Mark Rinne as Official Voting Delegate and Mayor Patrick Collins as Alternate Voting Delegate).

Announcement was made that a Calcutta benefitting Cheyenne area charities, will be held Sunday, July 31, 2021 beginning at 5:30 p.m. in the Cowboy Bistro located beside the Rodeo Committee Cabin at Frontier Park, Cheyenne, Wyoming, in conjunction with the 2021 Cheyenne Frontier Days Rodeo. (10% of proceeds go to bona fide charities).

Announcement was made that due to the Independence Day holiday on July 4, 2021 and City offices being closed on Monday, July 5, 2021, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, July 6, 2021 at Noon and Public Services Committee will meet Wednesday, July 7, 2021 Noon.

Under other business:

Mayor Collins expressed appreciation to Community Recreation and Events staff for their hard work and efforts relating to the June 26th Superday activities and noted the excellent condition of Lions Park.

Mr. Laybourn noted he will be sending each member of the Community Recreation & Events Department an email expressing appreciation for their efforts and hard work on the annual Superday event. Mayor Collins, Mr. Roybal and Mr. Segrave echoed Mr. Laybourn's comments and supports a staff email.

Dr. Aldrich advised she recently participated in a panel during affordable housing week and was impressed by a local contractor and the Planning & Development Department for their efforts. She further noted supportive comments that were received by local area contractors related to Mr. Bloom's leadership of the city's Planning & Development Department. She further provided information on a kick-off meeting for the new Technical Advisory Council and Innovations and Entrepreneurial Task Force that will be held on Tuesday, June 29th, beginning at 5:30 p.m. at the Array Building.

Mr. Johnson commented on a 13-year-old he met during Superday and expressed appreciation for his drive and work ethic noting he was raising awareness and funds for his church.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:10 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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